THE GOA, DAMAN AND DIU (EXTENSION OF THE CODE OF CIVIL PROCEDURE AND THE ARBITRATION ACT) ACT, 1965

ARRANGEMENT OF SECTIONS

SECTIONS

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IndiaCode

THE GOA, DAMAN AND DIU (EXTENSION OF THE CODE OF CIVIL PROCEDURE AND THE ARBITRATION ACT) ACT, 1965

ACT NO. 30 OF 1965

[25*th September*, 1965.]

An Act to provide for the extension of the Code of Civil Procedure, 1908, and the Arbitration Act, 1940, to the Union territory of Goa, Daman and Diu and for certain other matters.

BE it enacted by Parliament in the Sixteenth Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Goa, Daman and Diu (Extension of the Code of Civil Procedure and the Arbitration Act) Act, 1965.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "Goa, Daman and Diu" means the Union territory of Goa, Daman and Diu;

(*b*) "Lieutenant-Governor" means the administrator of Goa, Daman and Diu appointed by the President under article 239 of the Constitution.

3. Extension of Code of Civil Procedure and Arbitration Act, 1940, to Goa, Daman and Diu.—The Code of Civil Procedure, 1908 (5 of 1908), and the Arbitration Act, 1940 (10 of 1940), as in force in the territories to which they generally extend, are hereby extended to, and shall be in force in, Goa, Daman and Diu.

4. Repeal and saving.—(*1*) So much of any law in force in Goa, Daman and Diu as corresponds to the Code of Civil Procedure, 1908 (5 of 1908), or the Arbitration Act, 1940 (10 of 1940), or any part of the said Code or Act, as the case may be, shall stand repealed as from the coming into force of this Act in Goa, Daman and Diu:

Provided that the repeal shall not affect—

(*a*) the previous operation of any law so repealed or anything duly done or suffered thereunder, or

(*b*) any right, privilege, obligation or liability acquired, accrued or incurred under any law so repealed, or

(*c*) any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation or liability as aforesaid,

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced as if this Act had not been passed:

Provided further that, subject to the preceding proviso, notifications published, declarations and rules made, places appointed, agreements filed, awards made or filed, scales prescribed, forms framed, appointments made and powers conferred under any law so repealed shall, so far as they are consistent with the said Code or, as the case may be, the said Act have the same force and effect as if they had been respectively published, made, appointed, filed, prescribed, framed and conferred under the said Code or the said Act and by the authority empowered thereby in such behalf.

(*2*) In every law or notification passed or issued before the commencement of this Act in which reference is made to or to any Chapter or section or provision of any law hereby repealed, such reference shall, so far as may be practicable, be taken to be made to the said Code or, as the case may be, to the said Act or its corresponding Part, Order, section or rule.

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1. 15th, June, 1966, *vide* notification No. S.O. 1597(E), dated 24th, June, 1966, *see* Gazette of India, Extraordinary Part II, sec. 3(*ii*).

5. Rules of construction.—(*1*) In the Code of Civil Procedure, 1908 (5 of 1908), and in the Arbitration Act, 1940 (10 of 1940),—

(*a*) any reference to any provision of law not in force, or to any functionary not in existence, in Goa, Daman and Diu shall be construed as a reference to the corresponding law in force, or to the corresponding functionary in existence, in that Union territory:

Provided that—

(*i*) if any question arises as to who that corresponding functionary is, or

(*ii*) if there is no such corresponding functionary,

the Lieutenant-Governor shall decide as to who such functionary will be and his decision shall be final;

(*b*) any reference to the State Government shall be construed as a reference to the Central Government and also as including a reference to the Lieutenant-Governor.

(*2*) For the purpose of facilitating the application in relation to Goa, Daman and Diu of the said Code or the said Act, any court or other authority may construe it in such manner not affecting the substance as may be necessary or proper to adapt it to the matter before the court or other authority.

6. Power to remove Difficulties.—If any difficulty arises in giving effect in Goa, Daman and Diu to the provisions of the Code of Civil Procedure, 1908 (5 of 1908), or the Arbitration Act, 1940 (10 of 1940), extended by this Act to that Union territory, the Central Government may, by order in the Official Gazette, make such provisions or give such directions as appear to it to be necessary for the removal of the difficulty.

7. Consequential provisions.—As from the commencement of this Act, in the Goa, Daman and Diu (Judicial Commissioner's Court) Regulation, 1963 (Reg. 10 of 1963),—

(*i*) in section 8, in sub-section (*1*), the words "Subject to the provisions of any law for the time being in force" shall be inserted at the commencement;

(*ii*) in section 16, after the words "subject to the provisions of this Regulation", the words "and until other provision is made by law" shall be inserted;

(*iii*) in section 17, in sub-section (*1*), after the word "shall", the words ", until other provision is made by law,", shall be inserted.